

**Court No. - 21**

**Case :-** WRIT - C No. - 16866 of 2014

**Petitioner :-** Jasbeer Kaur

**Respondent :-** State Of U.P. & 3 Others

**Counsel for Petitioner :-** Neelabh Srivastava, Shailesh Srivastava

**Counsel for Respondent :-** C.S.C., Mahboob Ahmad

**Hon'ble Amreshwar Pratap Sahi, J.**

**Hon'ble Vivek Kumar Birla, J.**

Heard learned counsel for the petitioner and Sri Mahboob Ahmad for the Power Corporation.

It is alleged that the petitioner-claimant is said to be the lawful occupier of Flat No.36, 2nd Floor Green Valley Gopal Vihar Colony, Mehmoorganj, Varanasi.

From a perusal of the record it appears that there is some dispute between the builder and the petitioner which is pending before the Civil Court. The grievance of the petitioner in the present case is that the electricity connection provided by the builder has been disconnected and as such she requires a fresh electricity connection for which she has moved an application before the Power Corporation.

Be that as it may, after hearing the learned counsel for the parties and on perusal of the record, without entering into the merits of the claim, we are of the opinion that the grievance of the petitioner can be redressed under Clause 4.9 of the Electricity Supply Code, 2005. Clause 4.9 (a) provides that a person can apply for individual connection residing in the plot/Multistoried Buildings/Multiplex/Marriage Halls/Cooperative Group Housing Societies/Colonies, with load exceeding 25 KW. As such we are of the opinion that the grievance of the petitioner can be suitably redressed by the concerned authorities.

In view of the aforesaid, we hereby direct the respondent no.3 Executive Engineer to decide the application of the petitioner in accordance with law expeditiously preferably within a period of one month from the date of production of a certified copy of this order before him.

With the aforesaid observations, this writ petition is disposed of.

**Order Date :-** 24.3.2014

Anand Sri./-

**Court No. - 21**

Order Passed in the correction application filed in

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**Counsel for Petitioner :-** Neelabh Srivastava, Shailesh Srivastava

**Counsel for Respondent :-** C.S.C., Mahboob Ahmad

**Hon'ble Amreshwar Pratap Sahi, J.**

**Hon'ble Vivek Kumar Birla, J.**

Learned counsel for the applicant has prayed for carrying out an amendment in the incorrect reflection of the correct address of the petitioner in the writ petition and has also prayed for correction of the order dated 24.03.2014.

Learned counsel for the petitioner submits that the correct address has been indicated in the passport of the petitioner, which has been appended alongwith the writ petition at page 21 of the paper book.

Accordingly, the application is allowed. Let necessary correction be carried out in the writ petition and the order dated 24.03.2014 shall stand corrected with the following address of the petitioner, namely, *"Flat No.2, 2<sup>nd</sup> Floor, Block-II, Green Valley, Plot No. 36, Gopal Vihar Colony, Mahmoorganj, Varanasi"*.

Application stands disposed of accordingly and the order dated 24.03.2014 stands corrected accordingly.

**Order Date :-** 1.4.2014/YK